

new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

Discussion

1. Service of Process

Respondent contends it was not properly served. The argument is based on the provisions of Code of Civil Procedure, § 415.20, subdivision (b). Petitioner points out that this is a misreading of the statutory scheme allowing for service of an LLC.

Code of Civil Procedure, § 416.40 (b) allows service on “the person designated as agent for service of process in a statement filed with the Secretary of State [...] or a person authorized by the association to receive service of process.” (See also Corp. Code § 17701.16 [personal service on LLC includes delivery to “any individual designated by [the LLC] as agent”].) It appears undisputed that the person identified for service by respondent is Ramsbacher. (Request for Judicial Notice, Ex. A; Ramsbacher Decl., ¶1.) Ramsbacher does not deny that the address where service was made was his office, and identified on the Statement of Information on file with the Secretary of State.

Code of Civil Procedure, § 415.20 allows substitute service in lieu of personal delivery. Subdivision (a) addresses service upon an agent identified in Code of Civil Procedure, § 416.40, such as Ramsbacher. Contrary to respondent’s arguments, that subdivision does not include any reasonable diligence prerequisite to substitute service. It allows substitute service by leaving a copy of the summons and complaint during usual office hours in his or her office with the person who is apparently in charge thereof, and by thereafter mailing a copy. Only when the place served is a mailing address must the person who receives the documents be “informed of the contents thereof.” While the evidence is in conflict on the question of whether Danielle Johnson was informed of the contents (compare O’Malley Decl., Ex. L [“I informed them of the general nature of the papers”] to Johnson Decl., ¶2 [“He did not tell me what the documents were”]), this detail appears to be irrelevant.

The Court does not find that respondent was improperly served. Accordingly, the contention that respondent was improperly served does not constitute a basis for reconsideration.

2. New Law

Any opposition to the petition was due in mid-September. The California Supreme Court’s opinion in *Hohenshelt* was issued in August. Any opposition that was based on *Hohenshelt* could have been provided at the time the opposition was due.

10. 9:00 AM CASE NUMBER: MS25-0791

CASE NAME: MICHELE KARAKAS, AS CO-TRUSTEE OF THE THERESA H. CALLEJAS REVOCABLE LIVING TRUST VS. VICKI RUDD

*HEARING ON MOTION IN RE: TO STAY COMPLAINT

FILED BY:

TENTATIVE RULING:

Summary

Defendant Vicki Rudd's ("Defendant") Motion to Stay Complaint for Unlawful Detainer in this case filed November 3, 2025 is denied as set forth herein.

Background

This case is an unlawful detainer case where Plaintiff Michelle Karakas, who is co-trustee of Theresa A. Callejas Living Trust, served a sixty-day (60) notice of termination under the Ellis Act, California Government Code section 7060, et. seq., and California Civil Code section 1946, et. seq.. Theresa Callejas is Plaintiff's 90-year-old grandmother. Plaintiff filed a Motion for Summary Judgment on the unlawful detainer action, which was granted on November 21, 2025 after a full hearing on the merits. The Court granted summary judgment as it found no triable issues of material fact and issued judgment on behalf of Plaintiff. Plaintiff sought to take this housing unit off the market so she can sell it to provide funds to take care of Ms. Callejas. The Court granted possession of 70 Belinda Drive, Pleasant Hill, CA ("Subject Property") to Plaintiff.

On November 3, 2025, before the hearing on the Motion for Summary Judgment, Defendant Vicki Rudd filed this Motion to Stay the Complaint for Unlawful Detainer in this case on the grounds that this case is related to the action filed in this court, captioned *Vicki Rudd v. Theresa Callejas*, Case No. C25-00609. Defendant requested that this court stay this matter and also filed a motion to consolidate both cases so that the issues may be decided together under the doctrine of exclusive concurrent jurisdiction under Cal. Code of Civ. Proc. §128(a)(3). Defendant contends that this action should be stayed and consolidated because there is another action pending between the same parties on the same cause of action and the complaint alleges facts that overlap with Defendant civil case complaint concerning the Subject Property on the same set of facts and causes of action such as the lack of repairs, rent increases, pet policies, and penalties.

Defendant Vicki Rudd also filed a Motion to Consolidate Case No. C25-00609 with this unlawful detainer case. That motion in that case is scheduled to be heard on March 4, 2026 at 9:00 a.m.

Analyses

The Court granted summary judgment on this unlawful detainer case on November 21, 2025, and granted possession of the Subject Property to Plaintiff in its order filed on the same date. Since the unlawful detainer case is adjudicated in favor of Plaintiff, this motion is moot and is therefore denied.

Ruling

1. Defendant's Motion for Stay in this case, Case No. MS25-0791, is denied.
2. Plaintiff Vicki Rudd's Motion to Consolidate Case No. C25-00609, which is scheduled for hearing on March 4, 2026, is moot, as Summary Judgment has already been granted in favor

of Michele Karakas. The hearing in Case No. C25-00609 scheduled for March 4, 2026 at 9:00 a.m. is **vacated**.

3. Plaintiff shall prepare and e-file a proposed order conforming to this tentative ruling no later than five (5) days from the date of this hearing, attaching this tentative ruling as an exhibit.

Clarification to the Order on Summary Judgment Filed on November 21, 2025:

On a related matter, on November 21, 2025, Defendant Vicki Rudd filed an objection to the Court's order on summary judgment in this matter claiming that it is entitled to a statement of decision. Defendant is not entitled to a written statement of decision pursuant to Cal. Rules of Court Rule No. 3.1590(n), which states, "When a trial is completed within one day or in less than eight hours over more than one day, a request for statement of decision must be made before the matter is submitted for decision and the statement of decision may be made orally on the record in the presence of the parties" A plain reading of this rule supports the Court's finding that the Court is not required to prepare a written statement. The rule allows the Court to read its decision orally on the record. However, neither party ordered a court reporter to record this hearing, and as such it was not possible to record this statement on the record. And, moreover, the Court took this matter under submission and issued a written ruling, as the Court wished to consider the reply brief submitted by Plaintiff's Counsel. Accordingly, Defendant's objection and request for a statement of decision is overruled and a written statement of decision is **denied**. Defendant is not entitled to a written statement of decision since this hearing lasted less than eight hours.

To the extent Defendant seeks clarification of the trial court's summary judgment ruling pursuant to Cal. Code of Civ. Proc. § 437c(g), the request is properly before the Court and is **granted**. The following constitutes the Court's clarification.

Cal. Code of Civ. Proc. § 437c(g) provides: "Upon the grant of a motion for summary judgment on the ground that there is no triable issue of material fact, the court shall, by written or oral order, specify the reasons for its determination. The order shall specifically refer to the evidence proffered in support of and, if applicable, in opposition to the motion that indicates no triable issue exists. The court shall also state its reasons for any other determination. The court shall record its determination by court reporter or written order." The Court issued its written ruling on November 21, 2025. **This clarification is appended to that order and incorporated herein.**

Pursuant to section 437c(g), the Court granted summary judgment on the ground that no triable issue of material fact existed as to Plaintiff Karakas' bona fide intent to permanently withdraw the subject property from the rental market. The governing statutory and decisional authority makes clear that a landlord retains the right to recover possession "for any lawful cause." (Civil Code § 1942.5(f).) To recover possession for a good faith, non-retaliatory reason, the landlord must notify the tenant of the asserted grounds and, if the tenant contests those grounds, must prove their truth. (Id., subd. (g).) In *Drouet v. Superior Court* (2003) 31 Cal.4th 583, 587–588, the California Supreme Court concluded that the Ellis Act constitutes a "law pertaining to the hiring of property" under Civil Code § 1942.5, subdivision (d), and that a landlord's withdrawal of a property from the rental market is an exercise of " 'the right to go out of the rental business.' " (*First Presbyterian Church v. City of Berkeley* (1997) 59 Cal.App.4th 1241, 1253.) The Court further held that a landlord's bona fide intent to withdraw the property from the rental market defeats the statutory defense of retaliatory eviction under Civil Code

§ 1942.5, subdivisions (d) and (e).

As in *Drouet*, the instant matter requires harmonizing the Ellis Act with the retaliatory eviction statute. In *Drouet*, after the tenants requested repairs, the landlord served notices withdrawing the units from the rental market, and the tenants asserted retaliatory eviction. (Id. at p. 588.) The Supreme Court held that when a landlord complies with the Ellis Act and initiates an unlawful detainer action, the landlord may overcome a retaliatory-eviction defense by demonstrating a bona fide intent to withdraw the property from the market. If the tenant controverts this intent, the landlord bears the burden of establishing its truth by a preponderance of the evidence. (Id. at pp. 599–600; Civ. Code, former § 1942.5, subd. (e).) On remand, the trial court was directed to determine first whether the landlord’s withdrawal intent was bona fide; if so, the retaliatory-eviction defense fails. (*Drouet*, supra, at p. 600.)

Here, the evidence supporting Plaintiff’s bona fide intent to withdraw the property—which the Court expressly considered—includes the Declarations of Michele Karakas, Rosalinda Callejas, and Counsel Ghantous, along with the attached medical records and physician letters concerning Ms. Callejas’ health. This evidence is undisputed. The trial court found, and the record supports, that Plaintiff met her burden of proof. The Court finds that Plaintiffs have a bona fide intent to take the subject property off the market. Accordingly, the retaliatory-eviction defense is defeated as a matter of law.

Defendant, to create a triable issue, was required to produce more than speculative or credibility-based attacks on Plaintiff’s evidence. (§ 437c, subd. (e).) An issue of fact arises only from a genuine conflict in competent evidence. (*Lewis v. County of Sacramento* (2001) 93 Cal.App.4th 107, 116.) Defendant Rudd, however, presented only bare assertions unsupported by admissible documentary evidence, including uncorroborated allegations of habitability complaints. To the extent Defendant’s position hinges on credibility, the trial court was entitled to—and did—find credible Plaintiffs’ showing that Defendant manufactured proofs of service and falsified notices.

Because Plaintiff presented undisputed evidence establishing a bona fide intent to withdraw the property from the rental market, and because Defendant failed to raise a triable issue of fact, the trial court correctly concluded that Plaintiff satisfied her burden under section 437c. The summary judgment ruling is therefore properly clarified and the order granting summary judgment and possession is confirmed.

11. 9:00 AM CASE NUMBER: N25-1657

CASE NAME: CLAIM OF:ISAIAH CEJA

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Summary

Petitioner Silvia Marison Ceja’s Petition for Approval of Compromise of Minor Isaiah Ceja’s (“Minor”) Claim filed on August 19, 2025, is **granted**, as set forth below. No appearance is required at the hearing of this Motion on December 3, 2025.

Background